

TERMS AND CONDITIONS FOR EDUCATIONAL DAY TOURS

These Terms and Conditions ("**Terms**") govern the enrolment and participation of students in one-day educational visits, excursions, field trips, industrial visits, workshops, competitions and other day tours ("**Tour(s)**") organised by **The Modern Classroom** ("**Company**", "**we**", "**our**" or "**us**").

As the Participant is a minor, these Terms are accepted by the Parent/Guardian on the Participant's behalf. By making payment towards the Tour through the Company's website or authorised payment gateway, the Parent/Guardian confirms that he/she has read, understood and agreed to be legally bound by these Terms.

1. DEFINITIONS

Unless the context otherwise requires:

- A. "**Participant**" means the student enrolled in the Tour.
- B. "**Parent/Guardian**" means the parent or legal guardian who completes the registration process, accepts these Terms and undertakes all obligations on behalf of the Participant.
- C. "**Tour**" means any one-day educational visit, excursion, workshop, competition, field trip, industrial visit or similar programme organised by the Company.

2. ACCEPTANCE OF TERMS

- A. These Terms constitute a legally binding agreement between the Company and the Parent/Guardian in relation to the Participant's participation in the Tour.
- B. The Parent/Guardian represents and warrants that he/she is authorised to accept these Terms on behalf of the Participant and shall remain responsible for ensuring the Participant's compliance with these Terms.
- C. Acceptance of these Terms and payment of the applicable Tour Fee shall constitute confirmation of the Participant's enrolment.

3. REGISTRATION, PAYMENT, CANCELLATION AND REFUNDS

- A. The Parent/Guardian shall ensure that all information and declarations provided to the Company are true, complete and accurate.
- B. Upon confirmation of the Participant's enrolment, the Company undertakes bookings and incurs

commitments towards transportation, entry tickets, meals and other arrangements, if any. Any cancellation request shall be subject to deductions towards non-refundable bookings and costs incurred or bound to be incurred by the Company.

- C. No refund shall be payable for failure to report at the designated departure point, late arrival, voluntary withdrawal during the Tour or removal of the Participant due to misconduct or breach of these Terms.
- D. The Company reserves the right to recover any increase in transportation costs, entry fees, government levies or other operational costs arising prior to the Tour due to circumstances beyond its reasonable control. Failure to pay such additional amount may result in cancellation of the Participant's enrolment.

4. TOUR ARRANGEMENTS

- A. The itinerary, schedule, transportation, meals, venues and activities are indicative and may be modified by the Company where reasonably necessary due to operational, safety or logistical requirements.
- B. The Company may engage independent transportation providers, venues, educational institutions, restaurants or other third-party service providers for the purposes of the Tour and shall not be liable for any act, omission, delay or deficiency in services attributable to such third parties.
- C. The Parent/Guardian shall ensure that the Participant reports at the designated departure point at the time communicated by the Company.

5. THIRD-PARTY SERVICE PROVIDERS

- A. The Company may engage independent transportation providers, accommodation providers, restaurants, educational institutions, local guides and other third-party service providers for the purposes of the Tour. While the Company exercises reasonable care in selecting such service providers, it shall not be liable for any act, omission, delay, cancellation, deficiency of service, negligence or default on the part of such third-party service providers.
- B. The Participant and the Parent/Guardian shall comply with all reasonable rules, policies and instructions applicable to such third-party service providers during the Tour.

6. PARENT/GUARDIAN AND PARTICIPANT OBLIGATIONS

- A. The Parent/Guardian shall ensure that the Participant complies with these Terms and all instructions issued by the Company and its authorised representatives during the Tour.
- B. The Parent/Guardian shall ensure that the Participant behaves responsibly, follows all safety instructions and does not engage in any unlawful, unsafe or disruptive conduct.
- C. The Parent/Guardian shall ensure that the Participant carries any prescribed medication and all essential personal items required for the Tour and promptly informs the Company of any medical condition, allergy or special requirement that may affect the Participant's participation.

7. MEDICAL EMERGENCIES

- A. The Parent/Guardian authorises the Company to arrange emergency medical assistance for the Participant where reasonably necessary during the Tour.
- B. All medical, transportation and related expenses incurred in connection with such emergency shall be borne solely by the Parent/Guardian.

8. FORCE MAJEURE

- A. The Company shall not be liable for any delay, modification, suspension or cancellation of the Programme resulting from any event beyond its reasonable control, including acts of God, natural disasters, adverse weather conditions, epidemics, pandemics, war, terrorism, civil unrest, strikes, transportation disruptions, government restrictions or any other force majeure event.
- B. In the event of any such circumstance, the Company may modify, postpone, shorten, suspend or cancel the Programme as it reasonably considers necessary and shall not be liable for any consequential loss or compensation arising therefrom.

9. PHOTOGRAPHY AND PUBLICITY

- A. The Company may photograph or record the Participant during the Tour and use such material for educational, promotional and marketing purposes.
- B. The Parent/Guardian consents to the collection and use of personal information for the administration of the Tour and related communications.

10. LIMITATION OF LIABILITY

The Company shall exercise reasonable care in organising and supervising the Tour but shall not

be liable for any loss, theft, damage to personal belongings, injury, illness, delay, cancellation or any act or omission of third-party service providers, except where directly caused by the Company's gross negligence or wilful misconduct.

11. INDEMNITY

The Parent/Guardian shall indemnify and hold harmless the Company, its partners, employees, representatives, and affiliates against any claims, losses, damages, liabilities, or expenses arising from the Participant's misconduct, breach of these Terms, or violation of any applicable law during the Tour.

12. DISCIPLINARY ACTION

- A. The Company may suspend or remove the Participant from any activity during the Tour, or require the Parent/Guardian to arrange for the Participant's immediate collection, if the Participant engages in misconduct, violates these Terms or any lawful instructions, or poses a risk to the safety or well-being of any person.
- B. Any costs arising from such removal or collection shall be borne solely by the Parent/Guardian.

13. GENERAL PROVISIONS

- A. These Terms constitute the entire understanding between the Company and the Parent/Guardian in relation to the Participant's participation in the Tour.
- B. If any provision of these Terms is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- C. These Terms shall be governed by the laws of India, and the courts at **Bengaluru, Karnataka** shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms or the Tour.